

COURSE TITLE : MERCANTILE LAW
COURSE CODE : 3143
SEMESTER : 3
COURSE CATEGORY : B
PERIODS/WEEK : 6
PERIODS/SEMESTER : 90
CREDITS : 6

TIME SCHEDULE

MODULE	TOPICS	PERIODS
1	Law of contract I	25
2	Law of contract II	25
3	Sale of Goods Act	20
4	Factories Act	20

Course General Outcomes:

Sl.	G.O	On completion of this course the student will be able :
1	1	To understand Law of contract I
2	1	To Understand Law of contract II
3	1	To Understand Sale of Goods Act
4	1	To Understand Factories Act

SPECIFIC OUTCOMES

Module 1:

- 1.1.0 Understand Contract Act, 1872
- 1.1.1 Define contract
- 1.1.2 Distinguish between agreement and contract
- 1.1.3 Classification of contract
- 1.1.4 State the meaning of offer
- 1.1.5 List out the requisites of valid offer
- 1.1.6 State the meaning of acceptance
- 1.1.7 List out the essentials of valid acceptance
- 1.1.8 State the meaning, capacity of party competent to enter into a contract
- 1.1.9 State the meaning of minor, idiots, lunatics, drunkards, alien enemy
- 1.1.10 State the meaning of consideration

1.1.11	List out the essentials of consideration
Module 2:	
2.1.0	Understand free consent and legal object.
2.1.1	State the meaning of free consent
2.1.2	State the meaning of coercion, undue influence, fraud, misrepresentation, mistake
2.1.3	State the meaning of Unilateral and Bilateral mistake
2.1.4	List out the item considered as against the public policy
2.2.0	Understand performance of contract and discharge of contract
2.2.1	State the meaning of performance of contract
2.2.2	State the meaning of discharge of contract
2.2.3	List out the various methods of discharge of contract
2.2.4	List out the remedies available to parties in case of breach of contract
Module 3:	
3.1.0	Understand the contract of sale of goods
3.1.1.	State the meaning of contract of sale
3.1.2.	Distinguish between sale and an agreement to sell
3.1.3.	Distinguish between contract of sale and other contracts
3.1.4.	State the meaning of conditions and warranties
3.1.5.	State the meaning of unpaid seller
3.1.6.	List out various rights available
Module 4:	
4.1.0	Understand Factories Act, 1948
4.1.1	State the object of Factories Act
4.1.2	State the meaning of the term factory, manufacturing process, worker, power
4.1.3	List out the health measures
4.1.4	List out the different types of safety measures
4.1.5	List out the welfare measures
4.1.6	Illustrate working hours of adult and young persons
4.1.7	List out the special benefit enjoyed by women workers

CONTENT DETAILS

Module1

Contract Act 1872- difference between agreement and contract-contract-classification-offer-requisites of offer-acceptance-essentials of valid acceptance-capacity of parties-minor-idiot-lunatics-drunkards-alien enemy-consideration-essentials.

Module 2

Free consent and legal objects-meaning-coercion-undue influence-fraud-misrepresentation-mistake-unilateral and bilateral mistake-items against public policy-performance-discharge of contract-meaning-methods-remedies available to parties in case of breach of contract

Module3

Contract of sale of goods-meaning-difference between sale and agreement to sale-difference between contract of sale and other contract-conditions-warranties-unpaid seller-rights available

Module4

Factories Act 1948-objectives-factory-manufacturing process-worker-power-health measures-types of safety measures-welfare measures-working hours of adults and young persons- special benefits enjoyed by women workers.

BOOKS RECOMMENDED

1. S.N. Maheswari & B.N Maheswari, Mercantile Law , S.Chand & Co.
2. N.D. Kapoor, Elements of Mercantile Law and Industrial Law
3. M.C. Shukla, Mercantile law, S. Chand & co.